

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.

-----X
KEVIN KING and TIFFANY WILLIAMS,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER SEAN COX
(Shield #18051), POLICE OFFICER FRANCESCA
ORECKINTO (Shield #1279), POLICE OFFICER
LANCE WALTER (Shield #30215), POLICE
OFFICER CHRISTINA ANDERSON (Shield
#3439), in their individual and official
capacities, and POLICE OFFICERS "JOHN DOES"
1-10, in their individual and official capacities,

Defendant(s).

-----X
To the above named Defendant(s)

Filed:

*Plaintiff(s) designate
QUEENS County
as the place of trial*

*The basis of venue is
Plaintiff(s)' residence*

SUMMONS

*Plaintiffs reside at
114-38 200th Street
Saint Albans, NY 11412*

County of Queens

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff(s)' Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Mineola, New York
April 24, 2019

Defendant(s)' address(es):

See next page



VICTOR A. CARR & ASSOCIATES

Attorney for Plaintiff(s)
88 Second Street
Mineola, New York 11501
(516) 747-2478

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
KEVIN KING and TIFFANY WILLIAMS,

Plaintiff(s),

- against -

VERIFIED COMPLAINT

Index #

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER SEAN COX
(Shield #18051), POLICE OFFICER FRANCESCA
ORECKINTO (Shield #1279), POLICE OFFICER
LANCE WALTER (Shield #30215), POLICE
OFFICER CHRISTINA ANDERSON (Shield
#3439), in their individual and official
capacities, and POLICE OFFICERS "JOHN DOES"
1-10, in their individual and official capacities,

Defendant(s).

-----X

Plaintiffs, KEVIN KING and TIFFANY WILLIAMS, by and through their
attorneys, VICTOR A. CARR & ASSOCIATES, as and for their Complaint against
the Defendants, respectfully states and alleges, upon information and belief, as
follows:

PARTIES

1. That at all times hereinafter mentioned, plaintiffs were and
are residents of the County of Queens, City and State of New York.
2. Upon information and belief and at all times hereinafter
mentioned, defendant, CITY OF NEW YORK (hereinafter referred to as the

"CITY"), was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. Upon information and belief and at all times hereinafter mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "POLICE DEPARTMENT"), was and is a political subdivision and/or department of the defendant, CITY.

4. Upon information and belief and at all times hereinafter mentioned, defendant, SEAN COX, was a police officer attached to the POLICE DEPARTMENT.

5. Upon information and belief and at all times hereinafter mentioned, defendant, FRANCESCA ORECKINTO, was a police officer attached to the POLICE DEPARTMENT.

6. Upon information and belief and at all times hereinafter mentioned, defendant, LANCE WALTER, was a police officer attached to the POLICE DEPARTMENT.

7. Upon information and belief and at all times hereinafter mentioned, defendant, CHRISTINA ANDERSON, was a police officer attached to the POLICE DEPARTMENT.

8. Upon information and belief and at all times hereinafter mentioned, the defendants, POLICE OFFICERS "JOHN DOES" 1-10, were police officers attached to the POLICE DEPARTMENT.

9. Upon information and belief and at all times hereinafter mentioned, the defendants, SEAN COX, FRANCESCA ORECKINTO, LANCE WALTER, CHRISTINA ANDERSON and "JOHN DOES" 1-10, were acting under color of their official capacities as police officers attached to the POLICE DEPARTMENT, and their acts as alleged herein were performed under color of the statutes, ordinances, rules and regulations of the State of New York, County of Queens, and the POLICE DEPARTMENT.

10. Upon information and belief and at all times hereinafter mentioned, the defendants, SEAN COX, FRANCESCA ORECKINTO, LANCE WALTER, CHRISTINA ANDERSON and "JOHN DOES" 1-10 were acting within the scope of their employment with the POLICE DEPARTMENT and under color of his/her official capacity.

11. That on or about June 15, 2018, regarding the incident of February 3, 2018, the plaintiffs did serve a Notice of Claim, in writing, upon defendant, CITY, according to the law and practice of this jurisdiction, in which notice was set forth the name and post office address of the claimants, the plaintiffs herein; claimants' attorneys; the nature of the claim; the time when, place where and manner in which claim arose; the items of injuries and damages and the demand for adjustment or payment of claim.

12. That on or about June 15, 2018, regarding the incident of April 1, 2018, the plaintiffs did serve a Notice of Claim, in writing, upon defendant, CITY, according to the law and practice of this jurisdiction, in which

notice was set forth the name and post office address of the claimants, the plaintiffs herein; claimants' attorneys; the nature of the claim; the time when, place where and manner in which claim arose; the items of injuries and damages and the demand for adjustment or payment of claim.

13. That although thirty (30) days have elapsed since the service of said Notices of Claim upon the defendant, CITY, the said defendant has failed and refused to make any adjustments or payment of claim.

14. That this action is commenced within the time limit by statute for the commencement of such action, to wit, one year and ninety days after the cause of action therefor occurred.

STATEMENT OF FACTS - INCIDENT OF FEBRUARY 3, 2018

15. On Sunday February 3, 2018 at approximately 11 p.m., plaintiff KEVIN KING was operating his motor vehicle, with the plaintiff TIFFANY WILLIAMS as his passenger, on Sunrise Highway in Valley Stream, New York and turned onto Hook Creek Boulevard. As he made the turn, he noticed two stopped Nassau County Police vehicles. Two Officers were outside of their vehicles, talking to two civilians leaning against the trunk of a private car. By all appearances, it was a traffic stop in progress.

16. Across the street and walking towards the Nassau Officers were four New York City Police Department Officers, emerging from two separate vehicles marked as being from the 105th Precinct. As the plaintiff drove past, the Officers all turned their heads, several making eye contact with the plaintiff KEVIN KING. The several police officers then hurried into their vehicles, and began to pursue the plaintiff. Moments thereafter, without any cause or justification, the plaintiff was stopped by one of the New York Police Department vehicles, with the other three police vehicles closely behind. The plaintiff did not attempt to flee the scene, but pulled over immediately without incident. There were a total of six Officers present at the stop--four from the New York City Police Department, including Police Officer Sean Cox (Shield #18051) and Police Officer Francesca Oreckinto (Shield # 1279), both from the 105th Precinct in Queens, New York and two from the Nassau County Police Department, identities unknown.

17. As the police officers approached the plaintiff's vehicle, the plaintiff lowered all four of the windows on his vehicle and turned on the interior lights. Officer Cox approached the driver's side of the plaintiff's vehicle and Officer Oreck approached the passenger side.

18. The plaintiff KEVIN KING, who is a Federal Agent with the United States Department of Homeland Security, displayed his work credentials/ID in his left hand, and both hands were on the steering wheel. Officer COX noticed the plaintiff's credentials and asked what they were, and the plaintiff KEVIN KING immediately identified himself as a Federal Agent with the United States Department of Homeland Security. Officer COX then asked if the plaintiff had firearm, and the plaintiff replied in the affirmative. Officer COX then asked to see the plaintiff's credentials which the plaintiff immediately handed over to the officer. After looking at credentials for a moment, Officer COX, without any cause or justification, ordered the plaintiff KEVIN KING to step out of the vehicle. When asked why, his tone became instantly belligerent and he aggressively repeated the order, adding that it was for his own safety. The plaintiff KEVIN KING immediately complied and stepped out of the vehicle.

19. Immediately upon exiting the vehicle, Officer COX, without cause or justification, grabbed the plaintiff KEVIN KING by the arm, violently shoved the plaintiff up against my vehicle, and started to pat the plaintiff down forcefully, repeating "Where is the gun?!... Where is the gun?!" Officer COX then removed the plaintiff's firearm from the right side of the plaintiff's waist band, and gave it to another NYPD Officer on the scene. Officer COX then ordered the plaintiff to stand where he was and walked away.

20. The plaintiff KEVIN KING was then forced to stand uncomfortably for a number of minutes, with the bright lights from all four vehicles shining in his eyes, outside the vehicle with the outside temperature at approximately 40°F. While standing outside his vehicle, Officer ORECKINTO then came over and began to interrogate the plaintiff KEVIN KING, by first asking the plaintiff KEVIN KING where he worked. The plaintiff replied 26 Federal Plaza and 201 Varick Street, in Manhattan. Officer ORECKINTO asked why there were two work addresses, and the plaintiff explained that he was attached to both locations. Officer ORECKINTO then asked the plaintiff how long he had been a Federal Agent, and pointedly, why there were two raid/police jackets visible inside of the plaintiff's car, one on the driver seat and one on the passenger seat. The plaintiff KEVIN KING replied respectfully to all questions and, as to the last question, told Officer ORECKINTO that it was because he wanted to avoid situations exactly like this one.

21. Officer Oreckinto continued to pepper the plaintiff with questions, and openly berated the plaintiff for having "an attitude", despite the fact that the plaintiff had replied to all of her questions in a quiet and respectful manner. Officer ORECKINTO then approached the plaintiff TIFFANY WILLIAMS, the fiancé of the plaintiff KEVIN KING, and began questioning her in the same aggressive, rapid-fire tone. The plaintiff TIFFANY WILLIAMS answered all of the

Officer's questions, also in a quiet and respectful manner, as well as she could, while shivering with the car windows down.

22. At one point the Nassau County Police Officers also attempted to engage the plaintiff KEVIN KING in conversation, but the plaintiff politely told them that he did not wish to speak with them. One of them said "I know you are upset, but we did not stop you." At that point, the plaintiff KEVIN KING replied that they did nothing to prevent it.

23. After the passage of a substantial amount of time, Officer COX walked over, handed the plaintiff KEVIN KING his firearm and ID saying, "You are upset, but I was just doing my job." The plaintiff countered that, treating a credentialed Federal Agent like a common street criminal was far from doing your job.

24. The plaintiff KEVIN KING further indicated that the stop itself was contrary to valid Law Enforcement procedure—beginning with the fact that the police officers had not witnessed, nor had probable cause to suspect, that the plaintiff had engaged in any illegal activity whatsoever. Officer COX attempted to explain this unjustified stop and seizure by replying "I would have done this to any other Officer who had an ID I had never seen before." Plaintiff KEVIN KING then wondered aloud whether being a Black Officer had

affected how the situation had been handled, and Officer COX denied that was the case.

25. Plaintiff KEVIN KING the asked Officer COX how he had finally verified the plaintiff's ID, and Officer COX replied he'd called a buddy of his who is a Federal Agent. Plaintiff then asked "You're telling me that every time you stop an Officer who shows an ID you have never seen before, you order them out of their vehicle, push them up against the car, aggressively pat them down, take their weapon, have them stand in the cold with Police lights gleaming in their face for almost an hour--and then call one of your buddies to verify their ID? Plaintiff further asked why Officer COX had not asked him for a Supervisor's or Agency's number, or a second or third ID to verify his identity and told Officer COX that there were so many other ways the situation could have been better addressed, including simply letting the plaintiff go about his business unimpeded. Officer COX did not provide any response to those questions. Officer COX did exhibit his ID to the plaintiff. Officer ORECKINTO refused to do so and, when asked, said "I did not stop you," and walked away.

STATEMENT OF FACTS - INCIDENT OF APRIL 1, 2018

26. On Sunday, April 1, 2018 at approximately 9:30 p.m., the plaintiff KEVIN KING and his fiancé, the plaintiff TIFFANY WILLIAMS, were

leaving the Parson-Archer MTA Station in their vehicle and, as the plaintiff KEVIN KING made a left turn from Parsons Boulevard onto Archer Avenue, they were stopped, again without and cause or justification, by a marked New York City Police Department patrol car from the 103rd precinct.

27. Without attempting to flee and immediately stopping the vehicle as directed, two New York City Police Officers, Officer LANCE WALTER and Officer CHRISTINA ANDERSON, approached the vehicle. All four of the windows of the plaintiff's vehicle were down, with the interior lights turned on. Plaintiff KEVIN KING immediately displaced his credentials/ID in his left hand with both hands up on the steering wheel.

28. Officer WALTER approached the driver's side of the plaintiff's vehicle and asked to see the plaintiff's credentials and the plaintiff immediately complied. Handing them over to the Officer, the plaintiff identified himself as a Federal Agent with the United States Department of Homeland Security.

29. Officer WALTER asked the plaintiff if he had a firearm on his person, and the plaintiff replied in the affirmative. Officer WALTER then asked if the plaintiff was working, to which the plaintiff replied "Literally or figuratively? Literally, No. Figuratively, I am a Federal Agent with an on-call job."

30. Officer WALTER then asked to see the plaintiff's Driver's License, and asked whether this car was a work vehicle. The plaintiff immediately complied and presented his license and advised the Officer that it was the plaintiff's personal vehicle. Officer WALTER said to "Hang tight," and he and his partner Officer ANDERSON walked back to their vehicle.

31. About six minutes later, multiple New York City Police Department patrol cars rushed to the scene, arriving from several different directions, and surrounded the plaintiff's vehicle. Officer WALTER then got on the PA loudspeaker system and shouted "Get your hands out the window! Driver, passenger, get your hands out the window!!"

32. Understandably shaken and afraid, the plaintiff TIFFANY WILLIAMS asked the plaintiff KEVIN KING if he knew what was going on. KEVIN KING replied in the negative, and told her to just keep her hands up and out of the window.

33. Officer WALTER then ordered the plaintiff KEVIN KING to step out of the vehicle with his hands up. The plaintiff KEVIN KING immediately complied, opened the door from the outside of the driver's window, stepped out, and stood with his arms outstretched.

34. Officer Walter then did the unthinkable, without cause or justification, yelling "he has a gun on him!" At that point, all the Officers on scene drew their firearms, aiming at the plaintiff's head and body. At that moment, the plaintiff feared for his life and shouted "I told you I was a Federal Agent!" The officers shouted back "Get on the fucking ground!" The plaintiff KEVIN KING immediately complied and laid face first on the concrete. One of the Officers then yelled "Passenger, get the fuck out of the car with your hands up!" Officer WALTER kept yelling to the other Officers on scene "He's claiming to be a Federal Agent!" as he walked over to the plaintiff lying on the concrete.

35. Officer WALTER then, again without cause or justification, began to very aggressively frisk the plaintiff KEVIN KING, removing the plaintiff's firearm from the inside of his waist band, two folding knives that were in his pocket, an extra ammunition magazine, and the plaintiff's DHS-issued handcuffs. Officer WALTER then placed the plaintiff in handcuffs, as the plaintiff laid on the ground. As he did this, the plaintiff overheard one of the Officers say, "He doesn't look like a Federal Agent..."

36. Still prostrate on the ground, in handcuffs, the plaintiff saw another New York City Police Department vehicle quickly approaching. The Officer that disembarked was later identified to the plaintiff as a Sergeant Mole. Sergeant Mole ordered the Officers to stand the plaintiff up, and remove the

handcuffs. The Officers immediately complied and Sergeant Mole then asked the plaintiff to explain what happened, which the plaintiff did. Sergeant Mole then asked if the plaintiff had identification, which the plaintiff provided. The Sergeant then told the plaintiff to wait right there. At least 13 Officers were present and surrounding the plaintiff.

37. Sergeant Mole eventually walked back over, and returned the credentials to the plaintiff. When asked how the ID was verified, Sergeant Mole explained that he was familiar with the integrated holographic security features. He asked who had the plaintiff's firearm and other items that were taken from the plaintiff and those items were returned to the plaintiff. Sergeant Mole then instructed the other Officers to disperse.

38. To the plaintiff's great surprise, Sergeant Mole offered an apology—which the plaintiff perceived to be sincere. He said "I am very sorry you had to go through this." He then expressed his concern that a "trigger-happy" cop might accidentally shoot an Officer-of-Color and he would have to be the one to explain to the victim's family that one of his Officers "just fucked up."

39. Moved by his candor, the plaintiff simply said that this type of racial profiling has to stop and that this is not happening to white Officers.

The validity of the plaintiff's credentials was questioned without cause, and the lives of the plaintiff KEVIN KING and his fiancé TIFFANY WILLIAMS were placed in grave danger by those sworn to protect them. Sergeant Mole suggested that the actions of some Officers may have been motivated by jealousy. He said perhaps "These white Officers are stopping you and saying to themselves, 'How the hell did this black guy become a Federal Agent?'"

40. Sergeant Mole continued that if the plaintiff wished to file a complaint, he would provide identification of those involved, adding "This should not have happened."

AS AND FOR A FIRST CAUSE OF ACTION

41. Upon information and belief, during all times relevant to this Complaint, the defendants, SEAN COX, FRANCESCA ORECKINTO, LANCE WALTER, CHRISTING ANDERSON and POLICE OFFICERS "JOHN DOES", were citizens and residents of the State of New York; and at all times herein mentioned were Police Officers employed by the CITY, under the direction of the CITY and were acting in furtherance of the scope of their employment, acting under color of statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or CITY, and acting in their individual and official capacities.

42. During all times relevant to this Complaint, the Defendants, and each of them, were acting under color of law, to wit, under color of constitution, statutes, ordinances, laws, rules, regulations, policies, customs and usages of the State of New York and/or the CITY.

43. During all times relevant to this Complaint, the Defendants, separately and in concert, engaged in acts or omissions which constituted deprivation of the constitutional rights, privileges and immunities of the Plaintiffs, and while these acts were carried out under color of law, they had no justification or excuse in law and were instead gratuitous, illegal, improper and unrelated to any activity in which law enforcement officers may appropriately and legally engage in the course of protecting persons and property or ensuring civil order.

44. During all times relevant to this Complaint, the Defendants, and each of them, had the power and the duty to restrain the other Defendants and prevent them from violating the law and the rights of the Plaintiffs, but each of the Defendants failed and refused to restrain the other Defendants; and thereby, became a party to unlawfully subjecting the Plaintiffs to harm and denial of basic rights.

45. Plaintiffs allege numerous constitutional violations under Section 1983, which include, but is not limited to: unlawful stop, unlawful search and seizure, failure to follow proper policies and protocols, failure to intervene, conspiracy as it relates to the above and conspiracy as it relates to the false imprisonment, excessive use of force, and abuse of process, all of which support Plaintiffs' claims for constitutional violations.

46. Plaintiffs allege that the individually named defendants were acting in concert and within the scope of their authority when they stopped, detained, searched and seized the plaintiff KEVIN KING without probable cause or justification in violation of Plaintiff's right to be free from an unreasonable searches and seizures under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

47. The illegal stop, detention and search of the Plaintiff by the individually named defendants was an objectively illegal and unreasonable physical seizure of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

48. Plaintiff further alleges that the individually named defendants failed to follow proper policies and protocols as it relates to the incidents, which

constituted violations of Plaintiff's constitutional rights under the Fourth and Fourteenth Amendments. Plaintiff alleges that this conduct was intentional and malicious.

49. Plaintiff further alleges that the individual defendants failed to intervene as it relates to the incidents involving the Plaintiff, which constituted violations of Plaintiff's constitutional rights under the Fourth and Fourteenth Amendments. Plaintiff alleges that this conduct was intentional and malicious.

50. Plaintiff further alleges that the individual defendants conspired as to the unlawful stop, unlawful search and seizure, failure to follow proper policies and protocols, failure to intervene, false imprisonment and use of excessive force, which constituted violations of Plaintiff's constitutional rights under the Fourth and Fourteenth Amendments. Plaintiff alleges that this conduct was intentional and malicious.

51. Plaintiff was falsely stopped, falsely seized and falsely detained, deprived of his freedom, unlawfully imprisoned and subjected to the use of excessive force by the defendants in violation of his civil and constitutional rights afforded to him via the Fourth Amendment and the Due Process Clause of the Fourteenth Amendments of the United States

Constitution, as well as 42 U.S.C. § 1983. All acts by the Defendants were committed under color of law; thus, depriving Plaintiff of rights secured by federal law and the United States Constitution.

52. Plaintiff was aware of his confinement and Plaintiff did not consent to being confined.

53. As a direct result of said actions, the Plaintiff was unjustly exposed to disgrace, public humiliation, injury and embarrassment.

54. Each of the individual defendants knew or should have known that they were violating federal law and the Plaintiff's constitutional rights set forth herein and had failed to prevent the same; and therefore, acted in concert to harm the Plaintiff.

55. The use of excessive force by the individually named defendants was an objectively unreasonable physical seizure of Plaintiff and was in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

56. Each of the individual defendants, separately and in concert, acted outside the scope of their jurisdiction and without authorization of law and

each of the individual defendants, separately and in concert acted willfully, knowingly and purposefully with the specific intent to deprive Plaintiff of his right to freedom from illegal seizure of his person, freedom from illegal detention and imprisonment, and freedom from having excessive force used against him; all rights that are secured to Plaintiff by the Fourth Amendment, the due process clause of the Fourteenth Amendments of the United States Constitution, and by 42 U.S.C. § 1983. As a direct and proximate result of the aforesaid acts of the Defendants and each of them, Plaintiff suffered great physical harm, mental anguish and violation of rights from then until now and Plaintiff will continue to so suffer in the future having been greatly humiliated and mentally injured, as a result of the foregoing acts of the Defendants.

57. That by reason of the foregoing, Plaintiff KEVIN KING has been exposed to injury to his person, disgrace, humiliation and embarrassment and has been damaged in the sum of Five Hundred Thousand Dollars (\$500,000.00), including the cost of this action, attorney's fees pursuant 42 U.S.C. §1988, and punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION

58. Plaintiffs repeat, reiterate and reallege each and every allegation

contained in paragraphs of this Complaint hereinbefore mentioned with the same force and effect as though set forth herein.

59. That prior to the incidents alleged herein, and since, the defendant, CITY, has permitted and tolerated a pattern and practice of unlawful stops and unlawful searches and seizures by police officers against persons within the City of New York. Despite the egregiously improper conduct, the officers involved were not prosecuted, seriously disciplined or subjected to restraint. As a result, the individual defendants were caused and encouraged to believe that individuals could be unlawfully stopped and arrested without probable cause, and that such behavior would, in fact, be permitted by CITY.

60. In addition to permitting a pattern and practice of falsely stopping, searching and detaining persons, the CITY has failed to maintain a proper system for oversight of officers and supervisors and for investigation of all incidents of unlawful stops and illegal arrests by their agents/employees.

61. The CITY has failed to respond to the continuing and urgent need to prevent, restrain and discipline police officers that deprive citizens of their civil rights.

62. A system allegedly maintained by the CITY has failed to properly review unjustified behavior and activities by police officers, and has failed to identify the violative acts by police officers and to subject officers to discipline, closer supervision or restraint to the extent that it has become the custom of the CITY to tolerate the unlawful arrest and other wrongful actions by police officers.

63. As a direct and proximate result of the aforesaid acts, omissions, systemic flaws, policies and customs of Defendant, CITY, Plaintiff was unjustifiably mistreated, stopped and detained without probable cause, wrongfully detained, and subjected to the use of excessive force in violation of his civil and constitutional rights. Moreover, he has suffered and will continue to suffer from psychological harm, humiliation, fear, and severe physical, emotional and psychological damage, resulting in the need to seek professional counseling for the trauma which he incurred. All of these rights are secured to Plaintiff by the provisions of the Fourth Amendment, the due process clause of the Fifth and Fourteenth Amendments of the Constitution of the United States, as well as 42 U.S.C. § 1983.

64. That by reason of the foregoing, Plaintiff KEVIN KING has been exposed to injury to his person, disgrace, humiliation and embarrassment and has been damaged in the sum of Five Hundred Thousand Dollars

(\$500,000.00), including the cost of this action, attorney fees pursuant 42 U.S.C. §1988, and punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION

65. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this Complaint hereinbefore mentioned with the same force and effect as though set forth herein.

66. The individual defendants, expressly and impliedly, agreed with each other to bring about Plaintiff's seizure, detention, false accusations, and use of excessive force against Plaintiff, all without lawful or proper basis or justification. All without consideration of Plaintiff's rights and in violation of Plaintiff's rights.

67. That the stops, detentions, false imprisonment, excessive force, and violation of the laws of the State of New York and Plaintiff's civil rights were brought about and caused by the actions of the individual defendants and that the same were a clear and intentional abuse of process causing Plaintiff damages. All of these rights are secured to Plaintiff by the provisions of the Constitution of the United States and by 42 U.S.C. § 1985.

68. That by reason of the foregoing, Plaintiff KEVIN KING has been exposed to injury to his person, severe emotional and psychological damage, disgrace, humiliation and embarrassment and has been damaged in the sum of Five Hundred Thousand Dollars (\$500,000.00), including the cost of this action, attorney fees pursuant 42 U.S.C. §1988, and punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION

69. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this Complaint hereinbefore mentioned with the same force and effect as though set forth herein.

70. The individual defendants knew or should have known that the stops and detention of the Plaintiff without probable cause violated the Plaintiff's rights, guaranteed to him under the Fourth, Fifth, and Fourteenth Amendments and 42 U.S.C. §§ 1983, 1985 and 1986.

71. Each of the individual defendants had the authority, ability and concurrent duty under 42 U.S.C. § 1986 to prevent the unlawful stop, wrongful detainment, and use of excessive force against Plaintiff, yet neglected to prevent said violations from occurring, and further failed to intervene to

protect or aid the Plaintiff when such violations did in fact occur. All without consideration of Plaintiff's rights and in violation of Plaintiff's rights.

72. The individual defendants' failure to stop theses wrongful acts constitutes a breach of their duty to do so under 42 U.S.C. § 1986.

73. That by reason of the foregoing, Plaintiff KEVIN KING has been exposed to injury to his person, severe emotional and psychological damage, disgrace, humiliation and embarrassment and has been damaged in the sum of Five Hundred Thousand Dollars (\$500,000.00), including the cost of this action, attorney fees pursuant 42 U.S.C. §1988, and punitive damages.

AS AND FOR A FIFTH CAUSE OF ACTION

74. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this Complaint hereinbefore mentioned with the same force and effect as though set forth herein.

75. The individual defendants lacked any probable cause to stop, hold, and detain the Plaintiff in custody for any period of time, and without such probable cause, conspired to and wrongfully detained the Plaintiff KEVIN KING. Plaintiff was denied his freedom, was physically prevented from leaving the

custody of police, was handcuffed and surrounded by officers at the scene where the incident, was held against his will under the supervision and knowledge of the Police.

76. Plaintiff was aware of his confinement and did not consent to being confined.

77. As a result of said false arrest and false imprisonment, Plaintiff KEVIN KING suffered and continues to suffer damage, all due to the callous indifference of said Defendants in falsely stopping, detaining and imprisoning Plaintiff. Moreover, Plaintiff has suffered and continues to suffer pain, great emotional and psychological harm, anxiety and personal fear, all due to the defendants' wrongful and illegal acts.

78. That by reason of the foregoing, Plaintiff KEVIN KING has been exposed to deprivation of rights granted by law, disgrace, public humiliation and embarrassment and has been damaged in the sum of Five Hundred Thousand Dollars (\$500,000.00), including the cost of this action, attorneys' fees, and punitive damages.

AS AND FOR A SIXTH CAUSE OF ACTION

79. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this Complaint hereinbefore mentioned with the same force and effect as though set forth herein.

80. That the defendant, CITY and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named Defendants, who were unfit for the performance of their duties.

81. That by reason of the foregoing, Plaintiff KEVIN KING has been exposed to the deprivation of this constitutional rights, false imprisonment, severe emotional and psychological damage, disgrace, humiliation and embarrassment and has been damaged in the sum of Five Hundred Thousand Dollars (\$500,000.00), including the cost of this action, and punitive damages.

AS AND FOR A SEVENTH CAUSE OF ACTION

82. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this Complaint hereinbefore mentioned with the same force and effect as though set forth herein.

83. The defendant CITY had a duty under 42 U.S.C. § 1983, as well as under the Fourth, Fifth, Sixth, and Fourteenth Amendments, and under New York State Law, and their own rules and regulations, to prevent and cease the wrongful detainment, false imprisonment and use of excessive force, and a duty to hire, to train, to investigate, supervise, and discipline the individual defendants and to prevent other wrongful acts that were committed against Plaintiff.

84. That the defendant, CITY, as the employer of the individual defendants, is responsible for the wrongdoing of the individual defendants under the doctrine of respondent superior.

85. That by reason of the foregoing, Plaintiff KEVIN KING has been exposed to the deprivation of his constitutional rights, false imprisonment, severe emotional and psychological damage, disgrace, humiliation and embarrassment and has been damaged in the sum of Five Hundred Thousand Dollars (\$500,000.00), including the cost of this action, and punitive damages.

AS AND FOR A EIGHTH CAUSE OF ACTION

86. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this Complaint hereinbefore mentioned with the same force and effect as though set forth herein.

87. The individually named defendants intentionally, willfully, and maliciously assaulted and committed a battery upon the person of the Plaintiff KEVIN KING in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

88. The defendant CITY, as the employer of the individual defendants, is responsible for the wrongdoing of the individual defendants under the doctrine of respondeat superior.

89. That by reason of the foregoing, the Plaintiff KEVIN KING has been exposed to depravation or rights granted by law, disgrace, public humiliation, and embarrassment and has been damaged in the sum of Five Hundred Thousand Dollars (\$500,000.00), including the cost of this action and punitive damages.

AS AND FOR A NINTH CAUSE OF ACTION

90. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this Complaint hereinbefore mentioned with the same force and effect as though set forth herein.

91. By the actions described herein, the individually named defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff by laws and Constitution of State of New York.

92. As a result of the foregoing, Plaintiff KEVIN KING sustained great emotional injuries.

93. That by reason of the foregoing, Plaintiff KEVIN KING has been exposed to severe emotional and psychological damage, mental anguish, disgrace, humiliation and embarrassment and has been damaged in the sum of Five Hundred Thousand Dollars (\$500,000.00), including the cost of this action, and punitive damages.

AS AND FOR A TENTH CAUSE OF ACTION

94. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this Complaint hereinbefore mentioned with the same force and effect as though set forth herein.

95. That by reason of the foregoing, Plaintiff TIFFANY WILLIAMS has been exposed to the deprivation of her constitutional rights, false imprisonment, severe emotional and psychological damage, disgrace, humiliation and embarrassment and has been damaged in the sum of Five Hundred Thousand Dollars (\$500,000.00), including the cost of this action, and punitive damages.

WHEREFORE, plaintiff(s) demand(s) judgment against the defendant(s) in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the interest, costs and disbursements of this action.

DATED: Mineola, New York
April 24, 2019

VICTOR A. CARR & ASSOCIATES
Attorney for Plaintiff(s)
88 Second Street
Mineola, N.Y. 11501
Telephone: (516) 747-2478
Facsimile: (516) 747-2574
E-mail: victor@victorcarrlaw.com

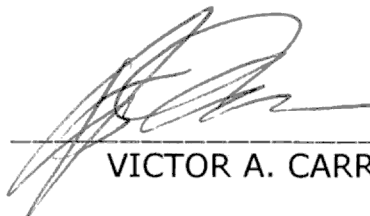
ATTORNEY'S VERIFICATION

VICTOR A. CARR, an attorney duly admitted to practice law in the courts of the State of New York hereby affirms the following under the penalties of perjury:

He is the attorney for the plaintiff in the within action; that he has read the foregoing SUMMONS & VERIFIED COMPLAINT and knows the contents thereof, that the same is true to the best of his own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters he believes them to be true.

The reason this verification is not made by the plaintiff is that the plaintiff resides and is located outside the County where we maintain our offices.

The source of deponent's information and the grounds for his belief, as to those matters stated upon information and belief, are statements furnished to deponent by plaintiff and records in deponent's file.



VICTOR A. CARR

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

KEVIN KING and TIFFANY WILLIAMS

Plaintiff(s),

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SEAN COX (Shield #18051), POLICE OFFICER FRANCESCA ORECKINTO (Shield #1279), POLICE OFFICER LANCE WALTER (Shield #30215), POLICE OFFICER CHRISTINA ANDERSON (Shield #3439), in their individual and official capacities, and POLICE OFFICERS "JOHN DOES" 1-10, in their individual and official capacities

Defendant(s).

SUMMONS & VERIFIED COMPLAINT

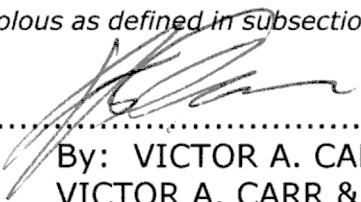
VICTOR A. CARR & ASSOCIATES

Attorneys for Plaintiff(s)

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victor@victorcarrlaw.com

Section 130-1.1 Statement

By signing of the within document, the above attorney certifies that, to the best of the said attorney's knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of this document or the contentions therein are not frivolous as defined in subsection (c) of Section 130-1.1 of the Rules of the Chief Administrator (22NYCRR).


.....
By: VICTOR A. CARR
VICTOR A. CARR & ASSOCIATES
Attorneys for Plaintiff(s)
88 Second Street
Mineola, New York 11501
(516) 747-2478
